



Subject: Legal Compliance Advisory: Foreign Real Estate Intermediation in Indonesia (2026)

Dear Melanie and Kalen,

Following recent market observations regarding aggressive real estate promotion by foreign nationals in Bali, Bali Zero is issuing this compliance advisory to clarify the legal framework for property sales and marketing in Indonesia.

The Regulatory Reality

Under Indonesian law, the profession of "Real Estate Broker" or "Sales Agent" is strictly regulated. Individual foreign nationals are prohibited from acting as independent real estate brokers. Engaging in direct sales activities without the correct corporate structure and work permits constitutes a violation of both Immigration (Law No. 6/2011) and Manpower regulations.

The 100% Compliant Model

To operate a "zero-shadow" real estate business in Indonesia, the following three-pillar structure is mandatory:

1. Corporate Structure: Operations must be conducted through a PT PMA (Foreign-Owned Company) using KBLI Code 68210 (Real Estate Brokerage / Intermediation). This code is 100% open to foreign ownership.
2. Licensing (SIU-P4): The company must hold a valid SIU-P4 License. Without this specific certification from the Ministry of Public Works and Public Housing (PUPR), the company has no legal standing to facilitate property transactions or claim commissions.
3. Manpower Compliance (TKA): Foreign staff cannot hold the title of "Broker" or "Sales Agent." Under Kepmenaker 228/2019, foreigners are permitted to hold strategic roles such as Marketing Specialist, Marketing Manager, or Director. These

roles allow for promotion and advisory, while the final brokerage activities must be supported by certified Indonesian professionals.

Risks of Non-Compliance

Operating outside this framework—particularly through 'freelance' promotion on social media—exposes individuals to:

- * Immediate Deportation and Blacklisting: Immigration authorities actively monitor digital platforms for unauthorized work.
- * Contractual Nullity: Transactions facilitated by unlicensed agents/companies lack legal protection and can be challenged in court.
- * Sanctions under PP 28/2025: New regulations impose heavy administrative fines on companies operating without valid technical licenses like SIU-P4.

At Bali Zero, we ensure your investment and operations are shielded by 100% legal certainty. Please find the technical details of the SIU-P4 requirements and KBLI 2025 verification in the attached Appendix.

Sincerely,

The Bali Zero Legal Team

APPENDIX A: SIU-P4 TECHNICAL DATASHEET

Surat Izin Usaha Perusahaan Perantara Perdagangan Properti

The SIU-P4 is the mandatory technical license for any real estate agency in Indonesia (regulated under Permen PUPR No. 11/2021).

1. Mandatory Requirements:

- * NIB (Business Identification Number): Active under KBLI 68210.
- * Certified Manpower (AREBI): The company must employ at least two (2) certified Indonesian Brokers registered with AREBI (Asosiasi Real Estate Broker Indonesia).
- * Physical Office: A registered business domicile is required; the Ministry of PUPR may perform a physical inspection or 'Virtual Verification' via the OSS system.
- * Membership: Active membership in a recognized real estate association (typically AREBI).

2. The Application Process:

1. OSS Submission: Application is initiated through the Online Single Submission (OSS-RBA) portal.
2. Document Verification: Submission of the brokers' certificates (Sertifikat Kompetensi) and employment contracts.
3. Technical Approval: The Ministry of PUPR reviews the fulfillment of requirements.
4. Issuance: The SIU-P4 is issued as a technical permit attached to the NIB.

APPENDIX B: KBLI 2025 VERIFICATION

Code: 68210

Title (EN): Real Estate Brokerage / Intermediation (Aktivitas Jasa Intermediasi Real Estat)

Status: CONFIRMED KBLI 2025

Verification Notes:

- * In the 2020 classification, this activity was often aggregated under 68200.
- * KBLI 2025 (BPS Reg. 7/2025) has maintained 68210 as the primary code for fee-based real estate services, intermediation, and brokerage.
- * PMA Status: 100% Open to Foreign Investment.
- * Risk Level: Menengah Tinggi (Medium-High Risk). This classification is why the SIU-P4 technical license is mandatory and cannot be bypassed.

Bali Zero Intelligence Note:

As of March 12, 2026, enforcement regarding KBLI 2025 migration is strict. All agencies must ensure their NIB is updated from the old 2020 codes to 68210 to remain valid for SIU-P4 renewals.